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SCOTT AIR FORCE BASE (AMC)

SCOTT AIR FORCE BASE
INSTRUCTION

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Security

SCOTT AIR FORCE BASE MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements AFI31-218_IP, *Motor Vehicle Traffic Supervision*, and conforms to the Illinois Vehicle Code (IVC) while making provisions for the needs of traffic supervision specific to this installation. The provisions apply to all persons within the limits of Scott AFB to include, but not limited to, military personnel, civilian employees, family members, visitors, and Department of Defense (DoD) contractors. This supplement is applicable to the 932d Airlift Wing (Air Force Reserve Command) and the 126th Air Refueling Wing (Air National Guard). Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with AFI 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with the Air Force Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the DAF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional's chain of command.

SUMMARY OF CHANGES

This document has been revised and must be completely reviewed. Major changes include: Addition of procedures surrounding Abandoned Vehicle processing, Deployed Parking Identification, and time frame to request driving privilege reinstatement for Driving Under the Influence (DUI).

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Chapter 1

INTRODUCTION

1.1. Program Management. The Scott AFB Vehicle Traffic Code is hereby established and applies to all vehicles and vehicle operators within the geographical limits of Scott AFB, Illinois. Non-uniform law and ordinances are a source of inconvenience and hazard to motorists and pedestrians, which contribute to traffic accidents and congestion; increase the administrative burdens of government agencies, and even more important raise serious barriers to mobility and commerce. In recognition of these problems and in the National Committee on Uniform Traffic Laws and Ordinances, there should be one comprehensive traffic law that does not conflict, duplicate, nor cover any matter adequately encompassed in a state vehicle code provision. Certain exclusions to the foregoing policy are necessary to be included in this instruction for compliance with current military directives, and where necessary, to lend local emphasis for safety and efficient highway travel. However, any revision of this instruction must include thorough consideration of all existing rules, directives, and command policy to the degree that essential functions are properly synchronized and reflect reasonableness and uniformity where possible. Other traffic ordinance, new or revised, enacted by the State of Illinois that is not specifically cited will be effective on the date of enactment or publication as provided by the State of Illinois. The invalidity of any provision of this instruction shall not affect the validity of the remainder of this instruction. Nothing in this instruction shall be construed to conflict with existing military directives. Where conflict exists, military directives will govern.

1.2. Responsibilities.

1.2.1. The 375th Air Mobility Wing Commander (375 AMW/CC) establishes the local installation traffic supervision program.

1.2.2. The 375th Security Forces Squadron Commander (375 SFS/CC), is the OPR for enforcing the provisions of the Scott AFB traffic code and implementing temporary or experimental directives to cover emergencies/special conditions. The 375 SFS/CC is the principal advisor to the installation commander concerning safe movement of motor vehicles and personnel on the installation.

1.2.3. The installation safety officer makes recommendations concerning the operation of motor vehicles, reviews roadway construction plans, and advises on measures to eliminate safety hazards.

1.2.4. The Base Civil Engineer (BCE) appoints an individual from the 375th Civil Engineer Squadron (CES) to serve as the Scott AFB Traffic Engineer. The duty of the traffic engineer is to determine the installation, proper timing, and maintenance of traffic control devices; conduct engineering analysis of traffic accidents and devise remedial measures; conduct engineering investigation of traffic conditions; plan the operation of traffic on the streets and highways of Scott AFB; and coordinate with the 375 SFS/CC, Chief of Safety, and the 375th Mission Support Group Commander (375 MSG/CC) in developing ways and means to improve traffic conditions. The installation traffic engineer may test traffic-control devices under the actual conditions of traffic. The traffic engineer shall ensure that proper traffic-control devices are installed temporarily during work and maintenance of roadways to ensure safe and efficient movement of traffic.

1.2.5. The 375th Logistic Readiness Squadron (LRS), Base Vehicle Operations Officer establishes programs concerning the management, administration, and operation of all military vehicles assigned to Scott AFB; conducts accident investigation inquiries concerning military vehicles and processes reports in accordance with this instruction; designates and seeks approval from the Scott Traffic Safety Advisory Board for auxiliary parking for government owned vehicles (GOV).

1.2.6. Unit commanders promote a vigorous education program, making available sufficient copies of the *Illinois Rules of the Road* and the *Illinois Bicycle Rules of the Road*.

1.3. Delegation of Authority. The 375 AMW/CC has delegated the establishment and management of the local installation traffic supervision program on Scott AFB to the 375 MSG/CC. The 375 MSG/CC or 375 MSG/CD chairs the Scott Traffic Safety Advisory Board.

1.3.1. Rebuttal of traffic violations is delegated to the 375 SFS/CC for action. In the event further appeals are requested by the violator, the 375 MSG/CC will review the rebuttal package and make final determination as to the disposition of the citation/points assessed.

Chapter 2

DRIVING PRIVILEGES

2.1. Installation Suspension or Revocation of Driving Privileges. The installation commander may suspend or revoke installation driving privileges for lawful reasons both related and unrelated to traffic violations or safe vehicle operations. When someone is discovered driving in violation of their base driving suspension/revocation, the installation commander may issue an additional 2-year suspension/revocation. Additionally, they will be issued a written warning stating the next violation may result in permanent revocation of on-base driving privileges.

2.1.1. The privilege of driving a privately owned vehicle (POV) on Scott AFB can be administratively suspended IAW this instruction by either the 375 AMW/CC or his/her designee. The 375 AMW/CC has the authority to suspend an individual's driving privileges for serious violations or when previous measures fail to improve the driver's performance. The 375 AMW/CC may suspend an individual's on-base driving privileges for up to 12 months under the following conditions:

2.1.1.1. Individuals who continually park in non-approved parking areas by the installation commander outlined in this instruction.

2.1.1.2. Habitually violating other nonmoving standards and policies.

2.1.1.3. Operating a motor vehicle on Scott AFB with a blood alcohol content (BAC) or breath alcohol content (BrAC) at or above the legal limit. **Note:** If a vehicle operator has a BAC or BrAC between 0.05 and 0.08, and additional evidence warrants a DUI arrest, the operator's on-base driving privileges may be suspended for 6 months.

2.1.1.4. Operating a vehicle with alcohol in their system while under the legal drinking age of 21.

2.1.1.5. Revocation of base driving privileges for 1 year also applies when military members, DoD Contractors, or non-DoD affiliated civilians are charged with DUI off base.

2.1.1.5.1. A law enforcement official who is certified through the Illinois State Police must conduct the test if a Breath Alcohol testing machine is used. An authorized medical authority will conduct all blood tests.

2.1.1.6. Operating a vehicle without insurance as required by IVC may result in a 6-month suspension of on-base driving privileges.

2.1.1.7. When nonjudicial punishment, conviction, or civilian or military administrative action has been taken for intoxicated driving. Persons convicted of a second civilian or military intoxicated driving offense, may have their on-base driving privileges revoked for 2-5 years.

2.2. Partial Or Restricted Driving Privileges. The 375 AMW/CC may authorize restricted driving privileges to individuals who had their privileges to drive on military installations suspended or revoked by a military service authority if their state driver's license is valid.

2.2.1. Reinstatement of driving privileges (on base only) for any person whose civilian driver's license is under suspension or revocation by a state authority will only be granted when absolutely necessary. **Note:** This option applies only to the exclusive military

jurisdiction side of Scott AFB for requests in which there are extreme hardships and there are no other workable alternatives.

2.2.2. The 375 AMW/CC has delegated the 375 MSG/CC the authority to reinstate driving privileges to individuals whose privileges have been revoked, suspended, and/or restricted, under the condition that the individual's driving credentials are still valid.

2.2.3. An individual whose base driving privileges have been suspended or revoked may apply, in writing, to the 375 MSG/CC, through their unit commander and security forces for a specific limited privilege. The letter must include the reason for the limited privilege and length of period requested. If approved, the authority granting the privilege will include in the approval letter the route of travel authorized to and from destination/parking area and action to be taken for violation of limited privilege restrictions.

2.2.3.1. Restricted or duty-related driving privileges may be authorized by the 375 MSG/CC after consideration based on formal request by the member. Formal requests will be in memorandum format and properly routed through the member's chain of command and endorsed by either the commander or section commander.

2.2.4. Personnel receiving limited privileges must carry the signed letter granting them privileges, on their person while driving. They must also be entered in Defense Biometric Identification System (DBIDS) as having limited driving privileges.

2.2.5. Unless accepted, when state authorities suspend or revoke an individual's license, the individual's installation GOV and POV driving privileges will also be suspended or revoked.

2.2.6. On Scott AFB, the licensing authority of the state where a license is issued will be notified when revoking a person's installation driving privileges (for a period of 1 year or more only) following final adjudication of an intoxicated driving offense or for refusal to submit to a BAC/BrAC Test.

2.2.7. Individuals who have received an on-base revocation based on DUI may not request for full reinstatement of privileges until a minimum of 6 months of the original driving revocation has been served.

2.2.7.1. Driving reinstatement requests will be brought to the 375 SFS/S5R office where a formal package will be authored and routed for signature. The package will include the driver's official request, a copy of the incident report or off-base police report if applicable, and an approval/denial memo for the 375 MSG/CC to endorse. The 375 MSG/CC will review the request and receive legal advice from the 375 AMW Legal Office (JA) as needed.

2.2.7.2. Completed reinstatement requests will be mailed, via certified mail, to the member, and the applicable unit first sergeant will be notified of the final decision via e-mail notification.

2.2.7.3. When driving privileges are restored, 375 SFS/S5R will remove the revocation in the Air Force Justice Information System (AFJIS) and DBIDS immediately.

Chapter 3

MOTOR VEHICLE REGISTRATION

3.1. Driver and Vehicle Requirements.

3.1.1. Vehicles on Scott AFB will display a current state registration tag IAW state law in which the vehicle is registered. Registration and tags must be in effect as required by the state in which the vehicle is registered. **Note:** Vehicles registered in states that require displaying front and rear license plates are required to display both plates.

3.1.2. Rental vehicles being used for official business will be treated as a GOV provided the driver maintains a copy of their orders authorizing the rental car.

3.2. Specialty Vehicle Usage. Vehicles such as segways, or other vehicle types not previously covered can only be utilized with the approval of the Wing Safety Office and written permission by the 375 MSG/CD.

Chapter 4

TRAFFIC PLANNING AND CODES

4.1. Traffic Planning. The Scott Traffic Safety Board will develop a Traffic Circulation Plan that provides the safest and most efficient use of all primary and secondary roads on Scott AFB to include the use of installation gates. Local and state agencies will be consulted to ensure the plan is compatible with surrounding communities.

4.1.1. Authority to Install Traffic-Control Devices. The base traffic engineer will install official traffic-control devices when, and as required, under the traffic code of Scott AFB to make the provisions of this instruction effective, and will place and maintain additional official traffic-control devices as deemed necessary to regulate, warn or guide traffic, under this instruction or the state vehicle code. (IVC 11-303).

4.1.2. Authority to establish play, parade, and ceremony streets. With concurrence of the 375 MSG/CC, the base traffic engineer shall have the authority to declare any street or part thereof, as a play, parade or ceremony street, and place appropriate signs or devices in the roadway indicating and helping to protect this authority.

4.1.3. Authority to Designate Crosswalks. With concurrence of the 375 MSG/CC, the base traffic engineer is hereby authorized to designate and direct maintenance by appropriate devices, marks, and lines on the surface of the roadway and crosswalks at intersections that may cause particular danger to pedestrians crossing the roadway, and at other place, as they may deem necessary.

4.1.4. Authority to establish bus stops. In conjunction with recommendations of the base transportation officer, authority is vested in the base traffic engineer to designate bus stops at locations, in such number as may be necessary, and of the greatest benefit and convenience to the public. Bus stops shall be designated by appropriate signs. The final determination in the creation of a bus stop lies with Bi-State Development Agency, who runs the Metro Bus Line. They have coordination on this activity, and may deny the creation of a new bus stop unless an economically advantageous situation exists.

4.1.4.1. The base traffic engineer is authorized to determine and designate roadways by official signs and markings, which require restriction due to size and load limitations and with the approval of the 375 MSG/CC, certain locations restricting public traffic.

4.1.4.2. Authority of security forces and fire department officials:

4.1.4.3. Security forces will enforce all street traffic laws of Scott AFB and state vehicle laws when applicable.

4.1.4.4. Security forces and personnel assigned to the 375 SFS are hereby authorized to direct traffic by voice, hand, or signal, in conformance with traffic laws. In the event of a fire, other emergencies or to safeguard pedestrians, SF may direct traffic as conditions require, notwithstanding the provision of the traffic laws.

4.1.4.5. At the scene of a fire, officials of the fire department may direct or assist SF in directing traffic in the immediate vicinity of the fire.

4.2. Installation Traffic Codes. Violations of state traffic codes are applicable to base driving records when the offense is included in the state's criminal code. This provision is covered under the authority of Title 18 United States Code 13. The DoDD 5525.4, *Enforcement of State Traffic Laws on DoD Installations*, enforces the vehicular and pedestrian traffic laws of states where the traffic violations are not considered criminal offenses. Therefore, they cannot be assimilated under the 18 USC 13 (reference (c), any State law made applicable to offenses committed on military installations. This provision is applicable to installations with having concurrent or exclusive jurisdiction. Under the provision in DoDD 5525.4, if found guilty, individuals can be fined up to $50.00 or imprisoned for up to 30 days or both, for each violation.

4.2.1. Operation of Two-Wheeled Motor Vehicles.

4.2.1.1. No individual will set into operation on any roadway on Scott AFB a two-wheeled vehicle that is not registered for roadway operation by any state that the State of Illinois recognizes by law. Two-wheeled vehicles that are not registered under state law will not be operated at any location on Scott AFB, except that area when set aside for such operation by the 375 MSG/CC.

4.2.1.2. No motorcycle or motor-driven cycle may be legally operated on a street or highway on Scott AFB unless the vehicle and driver comply with the following requirements: (Specifications for each item listed are contained in the IVC, AFI 91-207, *The US Air Force Traffic Safety Program*, the Air Mobility Command (AMC) Supplement and this instruction.).

4.2.1.2.1. Headlights (turned on at all times while operating). (IVC 12-201).

4.2.1.2.2. License plate light. (IVC 12-201).

4.2.1.2.3. Taillight. (IVC 12-205).

4.2.1.2.4. Stoplight. (IVC 12-208).

4.2.1.2.5. Muffler. (IVC 12-602).

4.2.1.2.6. Brakes. (IVC 12-301).

4.2.1.2.7. Handlebars (not more than 15 inches above seat). (IVC 11-1403c).

4.2.1.2.8. Seats designed for the number of persons carried. (IVC 11-1403).

4.2.1.2.9. Handgrips for passengers in a sidecar. (IVC 11-1403).

4.2.1.2.10. Footrests for passengers. (IVC 11-1405).

4.2.1.2.11. Rearview mirror. (IVC 12-502).

4.2.1.2.12. Horn. (IVC 12-601).

4.2.1.2.13. DOT-approved protective helmets for driver and passengers.

4.2.1.2.14. Shatter-resistant wraparound sunglasses, goggles, or helmet face shield. Motorcycle windshield alone does constitute adequate eye protection.

4.2.1.2.15. Garment and Motorcycle visibility. Sturdy over-the-ankle footwear, long sleeved shirt or jacket, full-fingered gloves or mittens and long trousers will be worn by operators and passengers when in operation. Wearing of a motorcycle jacket and pants constructed of abrasion-resistant materials such as leather, Kevlar and/or

Cordura, containing impact absorbing padding is strongly encouraged. Riders should select PPE that incorporates fluorescent colors and retro-reflective material.

4.2.1.2.16. Helmets, clothing, boots, and vehicles will not be decorated with adornments that degrade the military image. This includes, but is not limited to, helmets patterned after foreign military units, patches, decals, buttons or pictures that are not conducive to good order and discipline.

4.2.1.3. The wearing of portable headphones, earphones or other listening devices while walking, skating, jogging, bicycle riding or operating any motor vehicle on the roads and streets of Scott AFB is prohibited. Use of these devices masks or prevents recognition of emergency signals, alarms, announcements, the approach of vehicles, human speech, and ability to determine the direction from which the sound is coming. Individuals may be cited for using listening devices while operating a motor.

4.2.1.3.1. There are four exceptions to this rule:

4.2.1.3.1.1. Motorcycles with intercom systems.

4.2.1.3.1.2. A hands-free cell phone device that allows the driver of a motor vehicle to talk on their cell phone while keeping both hands on the wheel.

4.2.1.3.1.3. Security forces members using ear mics with their portable radios.

4.2.1.3.1.4. Drivers of fire apparatus or other GOV equipped with an intercom system.

4.2.1.3.2. Individuals stopped may be cited for using any listening device while operating a motor vehicle with the exception for the four items listed in Paragraphs **4.2.1.3.1.1 – 4.2.1.3.1.4**.

4.2.1.3.3. Individuals may be stopped and cited for using a cell phone without a hands-free device while operating a motor vehicle. This also includes texting while operating a motor vehicle.

4.2.1.3.3.1. This offense is considered a primary offense and as such acts as the only probable cause needed for a security forces member to initiate a traffic stop.

Chapter 5

STATE SPEED LAWS APPLICABLE

5.1. Speed limits established. The state traffic laws regulating the speed of vehicles shall be applicable upon all streets within this installation, except as indicated. Speed limits for Scott AFB, except as exempted under paragraph are as follows.

5.1.1. 30 MPH—unless otherwise posted.

5.1.2. 15 MPH—in residential areas unless otherwise posted.

5.1.3. 10 MPH—for tugs and tractors at any time.

5.1.4. 10 MPH—while passing troop formations.

5.1.5. 10 MPH—in parking lots.

5.2. Speed Restrictions.

5.2.1. No person shall drive a vehicle on any public street at a speed that is greater than reasonable and proper, with regard to traffic conditions and the use of the street, which may endanger the safety of any person or property. (IVC 11-601a).

5.2.2. The fact that the speed of the vehicle does not exceed the applicable maximum speed limit does not relieve the driver from the duty to decrease speed when approaching and crossing an intersection, approaching and going around a curve, approaching a hill crest, traveling on any narrow or winding roadway or when special hazards exist with respect to pedestrians, traffic or by reason of weather or street conditions. Speed will be decreased, as necessary, to avoid colliding with a person or vehicle on or entering the street, in compliance with legal requirements and the duty of individuals to use care. (IVC 11-601a).

5.2.3. Prohibition of leaving normal traffic arteries. No motor vehicle will leave the roadway to cross a parking lot, seeded area, alley, or other paved or non-paved surface, for the sole purpose of circumventing established traffic-control devices.

5.2.4. Non-motorized traffic subject to obey traffic regulations:

5.2.4.1. Personnel propelling a bicycle, tricycle, cart, or similar human-propelled vehicle on a roadway will be granted all of rights, and they shall be subject to all duties applicable to the drivers of a motor vehicle imposed by this instruction. Furthermore, they must comply with the rules of the road portion of the state vehicle code. (IVC 11-1502).

5.2.4.2. Use of coasters, roller skates, in-line skates, and similar devices. No person will ride/operate roller skates, in-line skates or riding in or by means of any coaster, toy vehicle, or similar device on any roadway, street, parking lot, building entrance or other areas on Scott AFB. The above devices may be ridden/operated on the sidewalks in housing, dormitory complexes, and any street or play area designated for this purpose. Buildings 1620, 1700, 1900, and 1980 parking lots are designated riding areas on the West side of the base (after duty hours and weekends only). Buildings 3600 and 5713 parking lots are designated riding areas on the East side of the base (after duty hours and weekends only). When crossing a street, persons will be subject to all of the rules that are applicable to

pedestrians. The wearing of headphones or other listening devices while bicycling, jogging, skating, or walking near streets and roadways is prohibited.

5.2.4.3. All personnel riding bicycles, coasters, roller skates, in-line skates, and other similar devices on Scott AFB will wear an approved helmet. The ANSI or Snell Memorial Foundation must approve helmets.

Chapter 6

VEHICLE EQUIPMENT AND FLIGHT LINE RESTRICTIONS

6.1. Vehicle Equipment Restrictions.

6.1.1. According to Illinois law, no one may drive an unsafe vehicle that may endanger a person or property. It is the responsibility of the owner to keep his/her car in safe condition. Serious defects in vehicles identified by the IVC shall be grounds for removal of the vehicle from a roadway by direction of security forces until the specific defect is corrected. When defects of a minor nature are identified that may contribute to unsafe operation, the operator of the vehicle will be allowed 5 duty days to correct the defect prior to processing the citation. When an individual is cited for operating a defective vehicle, the patrol officer will inform the violator they have 5 duty days to correct the discrepancy and show proof to security forces personnel assigned to the 375 SFS that the discrepancy has been corrected. The vehicle must not be operated until the defect has been corrected. Vehicle specifications are contained in the IVC.

6.1.1.1. Television receivers and video monitors are prohibited when visible to the driver (IVC 12-604). **Exception:** Global Positioning System (GPS) devices and rear view camera monitors are authorized.

6.1.2. Use of radar/laser detection devices is prohibited.

6.1.3. In order to preserve good order and discipline, the categories of vehicle decals and/or decorations listed below will not be allowed to be displayed on privately owned vehicles while on Scott AFB. Prohibited decals and/or decorations include those that:

6.1.3.1. Are disrespectful toward the Commander-in-Chief or are meant to embarrass or disparage the Commander-in-Chief.

6.1.3.2. Contain drug paraphernalia or encourage use of illegal drugs.

6.1.3.3. Are discriminatory based on age, color, race, gender, religion, or national origin.

6.1.3.4. Encourage violation of the Uniform Code of Military Justice (UCMJ).

6.1.3.5. Sexually vulgar or obscene.

6.1.3.6. A suspected violation of this policy is not grounds to detain the suspected individual. Responding security forces members will obtain the vehicle operator's information and record what the item says/shows (photograph when possible). Information will be routed to 375 AMW/JA through 375 SFS/CC for final determination of on whether the items fall under the prohibited category. Upon verification that item(s) fall under the prohibited category, the 375 SFS/S5R will send notice to the vehicle operator via certified mail specifying the violation of this policy and inform the individual that the item is prohibited from being displayed on base.

6.2. Flight Line Restrictions.

6.2.1. Operation of vehicles on the flight line. Scott AFB Instruction 13-213, *Airfield Driving Instructions*, covers the operation of vehicles on the flight line and adjacent areas. This instruction applies only to those subjects not specifically addressed in the aforementioned

instruction and in the absence of specific guidance in this directive, which would apply to the operation of any vehicle.

Chapter 7

MAJOR AND MINOR ACCIDENT REPORTING

7.1. Major. The 375 SFS will accomplish detailed reports through AFJIS, via AF Form 3545A, *Incident Report*, and AF Form 1315, *Accident Report*, for all major accidents. **Note:** Generally, a detailed accident investigation includes, but is not limited to, an accident field report, sketch or diagram, and an accident narrative.

7.1.1. A major traffic accident is defined as follows:

7.1.1.1. All accidents involving a fatality or personal injury, whether apparent or complaint of injury.

7.1.1.2. Accidents resulting in vehicle or property damage, either government or private, in excess of $10,000.

7.1.1.3. Accidents causing the vehicle to be disabled.

7.1.1.4. Anyone involved in a major traffic accident must report it immediately to the Emergency Communications Center (ECC). Reports must also be made to the ECC, if there is an off-base accident involving military property.

7.1.1.5. No driver will depart the scene of a major traffic accident in which he or she is involved, except if the person is removed or proceeds directly to a medical facility for treatment and renders a report of accident if physically capable, proceeds directly to a place for the purpose of rendering a report to security forces, and returns directly to the scene of the accident, when capable.

7.1.1.6. Persons who have witnessed a vehicle accident, whether involved or not, shall render reasonable assistance to any person requesting assistance or who is incapable of requesting assistance, and report the vehicle accident to security forces by the most expeditious means available.

7.1.2. The 375 SFS will:

7.1.2.1. Notify 375 AMW Public Affairs (PA) Alert Photo for their response.

7.1.2.2. Identify witnesses and personnel involved in the accident.

7.1.2.3. Conduct a formal investigation.

7.2. Minor. A minor vehicle accident is any vehicle accident that does not meet the qualifications listed in Paragraphs **4.14.1.1 – 4.14.1.4**.

7.2.1. Minor vehicle accidents must be reported to the ECC within 24 hours. Minor vehicle accidents involving GOV or property will be reported immediately to the ECC.

7.2.2. The following information must be provided as a minimum to the ECC: vehicle's information, driver's information, property damages (if any), and a synopsis of the accident.

7.2.3. A minor vehicle accident will also be recorded by SFS on a Local Traffic Accident Worksheet, and will be entered into AFJIS IAW AFI 31-115, *Law and Order Operations*.

7.2.4. An AF Form 3545A will be accomplished for all accidents involving GOVs and government property. The 375 AMW/PA Alert Photo will be notified for their response.

7.2.5. For all vehicle accidents, operators will exchange vehicle, driver, and insurance information.

7.2.6. When ownership of another vehicle or property is involved and the owner cannot be located or identified, the driver of the vehicle reporting the accident shall affix written advisory to the vehicle or property in sufficient context to identify the driver and shall, without delay, notify ECC (IVC 11-404).

7.2.7. Suspension and penalty for failure to report. Upon discovery that an accident has occurred and no report has been made as herein provided, or when an individual leaves the scene of a minor vehicle accident without exchanging information or leaving written notice to the other party involved in the minor vehicle accident, the 375 MSG/CC may suspend the on-base driving privileges of any person failing to report an accident, until such report has been made.

7.2.8. Parents or legal guardian responsible for minors. The parent or legal guardian is responsible for minors while they are operating vehicles on Scott AFB and is required to ensure their obedience to rules prescribed in this instruction. Reports of violations will be processed IAW **Chapter 5** of this instruction. The 375 MSG/CC will review reports of willful misconduct by minors for adequacy of action.

7.2.9. Information provided in written reports cannot be used in criminal proceedings against the person submitting it, unless it was originally categorized a hit and run and the violator is the person submitting the report. Rights advisement will be given prior to any criminal traffic statements provided by violators.

7.2.10. Use of traffic accident investigation report data. The 375 SFS will use accident investigation information to determine the cause of the accident. If accidents become more frequent, analyze the location, condition, type of accident, and other factors in an attempt to isolate causes.

7.2.11. Report if safety restraints or air bags were deployed at the time of the accident.

Chapter 8

TRAFFIC VIOLATIONS

8.1. Central Violations Bureau (CVB) Traffic Violations. The United States District Court (USDC) Violation Notice may be used to refer traffic violations of state traffic laws made applicable to the installation (Assimilative Crimes Act (18 USC § 13) and the delegation memorandum in DoDD 5525.4, Enclosure 1, and other violations of Federal law) to the U.S. Magistrate for violations that occur within exclusive jurisdiction.

8.2. United States District Court Violation Notice Issuance and Processing.

8.2.1. USDC Violation Notice will be filled out in its entirety.

8.2.2. NOT USED

8.2.2.1. USDC Violation Notices written under 18 USC § 13 667, Assimilative Crimes Act in conjunction with 625 Illinois Compliled Statues (ILCS) for traffic offenses will be assessed IAW 705 ILCS 135/15-60 Schedule 12 fines for traffic offenses and Illinois Supreme Court Rule 526 and 529.

8.2.2.2. USDC Violation Notices written under 18 USC § 13 667, Assimilative Crimes Act in conjunction with 625 ILCS for non-traffic offenses will be assessed a 100 USD forfeiture IAW 705 ILCS 135/15-65 Schedule 13.

8.2.3. For cases referred to U.S. Magistrates, normal distribution of USDC Violation Notice will be as follows:

8.2.3.1. Reports and Analysis (S5R) will mail white copy to Central Violation Bureau.

8.2.3.2. Violator will receive yellow copy.

8.2.3.3. Law enforcement personnel will provide yellow USDC Violation Notice instructions.

8.2.3.4. S5R will file pink copy.

8.2.4. When USDC Violation Notice is issued and six points have accumulated on the driving record, a copy will be forwarded through command channels to the Service member's commander, to the commander of the military family member's sponsor, or to the civilian's supervisor or employer.

8.2.4.1. For violations that require a report of action taken by leadership, the report of action will be returned to S5R for processing.

8.2.4.2. Previous traffic violations committed by the offender and points assessed may be shown on the Person Background Search Report.

8.2.4.3. When the report is received by S5R of record, that office will enter the action on the violator's driving record.

8.3. DD Form 1408, *Armed Forces Traffic Ticket*, Procedures and Processes.

8.3.1. ALL traffic violators on Scott AFB who commit minor traffic violations will be issued an Armed Forces Traffic Citation, DD Form 1408. These citations will be written in both exclusive and proprietary jurisdictions and will be processed internally within the installation's

process for unit commander action and traffic point system. Citations are applicable under the federal Assimilative Crimes Act (18 USC § 13) and the delegation memorandum in DODD 5525.4, Enclosure 1, and other violations of Federal law).

8.3.1.1. Examples of minor traffic violations include, but are not limited to failure to stop, excessive speed, defective equipment, failure to wear a safety restraint, etc.

8.3.1.2. **Exception:** In cases of criminal offenses (e.g., Driving Under the Influence, weapons and drug infractions, etc.) by civilian personnel in exclusive jurisdiction only, those individuals will be cited with a USDC Violation Notice and required to complete the Federal Magistrate process. The violator will be notified by CVB on appearance time, date, and location. Points and driving privileges will be assessed for on base violations after the USDC Violation Notice has been closed by the courts. Military members committing criminal offenses in both proprietary and exclusive jurisdiction will be charged and processed through the military justice system.

8.3.2. DD Form 1408 issued to violators will be filled out completely with the correct citation code included in the remarks section.

8.3.2.1. Reports and Analysis (S5R) will retain white and yellow copy.

8.3.2.2. Violator will receive pink copy.

8.3.2.3. S5R will file white and yellow copy.

8.3.3. When DD Form 1408 is issued and six points have accumulated on the driving record, a copy will be forwarded through command channels to the servicemember's commander, to the commander of the military family member's sponsor, or to the civilian's supervisor or employer.

8.3.3.1. Previous traffic violations committed by the offender and points assessed may be shown on the Person Background Search Report.

8.3.3.2. For violations that require a report of action taken by leadership, the report of action will be returned to S5R for processing.

8.3.3.3. S5R will enter the action on a violator's driving record once they receive the report.

8.4. Standards and Procedures for Processing Intoxicated Drivers. Note: Citations and reports for active duty military members will be processed IAW with UCMJ and this instruction. Civilians apprehended for driving under the influence of intoxicants (DUI) will be processed IAW with IVC 11-501.1 and this instruction.

8.4.1. Only those personnel who have been certified by the Illinois State Police are allowed to conduct breath analysis test on Scott AFB.

8.4.2. It is presumed that an individual with a BAC of 0.049 percent or less is not under the influence of alcohol, but can still show signs of impairment.

8.4.3. When the individual's BAC or BrAC is 0.05 to 0.08 percent, the driver may be convicted of DUI according to the UCMJ or the IVC. **Note:** The threshold delineating impaired from intoxicated will be used when assimilating the IVC

8.4.4. If the percentage is 0.08, or more, or if tests reflect the presence of illegal drugs, the person is considered to have been driving under the influence of intoxicants. Base driving privileges will be suspended according to **Attachment 2** of this instruction.

8.4.5. If an individual is under the age of 21, or is operating a school bus, a measurement over 0.00 is considered to be driving under the influence of intoxicants.

8.4.6. If an individual is driving a commercial vehicle which requires a commercial driver's license (i.e., an 18-wheeler) a measurement of 0.04 or higher is considered to be driving under the influence of intoxicants.

8.5. Legalities in Processing DUI.

8.5.1. Before using the machine, test the calibration in accordance with manufacturer's instructions and state or local procedure before administering the test. If, for any reason, the test indicate the device is not working properly the test will not be performed. **Note:** The 375 SFS does not calibrate any of the breath analysis devices used to test BrAC on Scott AFB. The devices complete a self-test to determine if they are operational or not. Preventive maintenance is conducted by the Illinois State Police. If, for any reason, the device is non-operational, it must be sent back to the manufacturer for repair.

8.5.2. Voluntary breath and bodily fluid testing BAC or BrAC Tests may be administered only if the following conditions are met:

8.5.2.1. The person was lawfully stopped on the installation while in control or driving a motor vehicle.

8.5.2.2. A request was made to the person to consent to the tests combined with a warning that failure to voluntarily submit to or complete a chemical test of bodily fluids or breath will result in the revocation of driving privileges.

8.5.2.3. Reasonable suspicion exists to believe that the person was driving under the influence of alcohol or drugs.

8.5.2.4. The law enforcement official relying on implied consent to blood, breath, or urine tests.

8.5.2.4.1. Persons who drive on the installation shall be deemed to have given their consent to evidential tests for alcohol or other drug content of their blood, breath, or urine when lawfully stopped, apprehended, or cited for any offense allegedly committed while driving or in physical control of a motor vehicle on military installations to determine the influence of intoxicants.

8.5.2.4.2. Driving privileges will be revoked if the person fails to voluntarily submit to or complete a requested chemical test. The person does not have the right to have an attorney present before stating whether he or she will submit to a test, or during the actual test. Installation commanders will prescribe the type or types of chemical tests to be used. Testing will follow policies and procedures in AFI 31-218, paragraph4–12. The results of chemical tests conducted under the implied consent provisions of this regulation may be used as evidence in courts–martial, nonjudicial proceedings under UCMJ, Article 15, administrative actions, and civilian courts. **Note:** The Voluntary Breath and/or Bodily Fluid Test can be administered to determine the presence of alcohol in the breath or bodily fluid of minors suspected of underage consumption.

8.5.3. Military or civilian suspects will be advised of the Implied Consent Warning (Warning to Motorist and Law Enforcement Sworn Report).

8.5.4. If the suspect consents to take a breath alcohol test, a person certified and licensed by the State of Illinois to operate a breathalyzer or other approved equipment will administer the test. The results will be recorded on the Breathalyzer Test Record or other applicable breathalyzer forms.

8.5.5. A copy of all reports on military personnel and DoD civilian employees apprehended for intoxicated driving will be forwarded to the installation alcohol and drug abuse facility.

8.6. Off-Installation Traffic Activities.

8.6.1. Security forces investigate traffic accidents on base and incidents of interest to local authorities. The 375 SFS personnel may respond to traffic activities beyond the confines of Scott AFB when the situation dictates, such as life-saving measures, severe traffic congestion affecting the installation or other such instances.

8.6.2. The exchanging of information with local authorities, receiving, processing, and securing of traffic-related incident reports requested from other investigative agencies will normally be approved via 375 SFS procedures.

Chapter 9

DRIVING RECORDS AND THE TRAFFIC POINT SYSTEM

9.1. Driving Records. The AFJIS will be used to record vehicle traffic accidents, moving and parking violations, suspension or revocation actions, and traffic point assessments involving military and civilian personnel, their family members, and other personnel operating motor vehicles on Scott AFB.

9.1.1. Suspension/Revocation of Driving Privileges (see **Attachment 2** of this instruction).

9.1.2. Point assessment for moving violations (see **Attachment 3** of this instruction).

9.2. Traffic Citation Rebuttal Procedures. The action authority for traffic citations is delegated to the unit commander of the alleged offender. The unit commander will annotate action taken, if any, on the traffic citation. This policy does not restrict First Sergeants from performing and signing for action taken on the traffic citations of enlisted members of the unit who choose not to rebut the citation. See **https://www.cvb.uscourts.gov/index.html** for information regarding CVB citations. The following rebuttal procedures are specific to DD Forms 1408.

9.2.1. Personnel will notify S5R within 5 days of intent to rebut a citation, and deliver a written statement within 14 days detailing the circumstances surrounding the issuance of the citation and why he/she believes the violation should be dismissed. If their unit commander endorses the statement, the commander will forward information to the security forces, Reports and Analysis Section (S5R). The purpose of endorsement is to ensure commander-level involvement. The commander must add comments supporting the violator's guilt or innocence. S5R personnel will obtain a written statement from the patrolman who issued the citation and forward the information to the 375 SFS/CC.

9.2.2. S5R will process the DD Form 1408 into AFJIS and obtain the answers to the following questions to give to the rebuttal authority:

9.2.2.1. Is the offense on the citation suspendable?

9.2.2.2. If the rebuttal authority allows, does the offender wish to make a personal appearance or produce a written rebuttal?

9.2.2.3. S5R places the yellow copy of the DD Form 1408 in the suspense file pending disposition. Set 14-day suspense for command action.

9.2.2.4. Complete blocks 19-23 on the back of the white copy and annotate any prior history, points assessed, and the suspense date. In the Report of Action Taken on Traffic Violation, black out the words 'No Action Taken' this is not an option. If applicable, attach the driving history for the violator from AFJIS. Forward the white copy to the violator's commander for action. If a DD Form 1408 was issued during the course of an accident investigation, attach a copy of the accident report to the ticket when it is sent for command action.

9.2.2.5. If response on command action is not received by the due date, forward a Notice of Late Suspense memorandum, which can be electronic, providing an additional 7-day suspense. If the additional suspense is not met, send a Notice of Second Late Suspense memorandum to the unit commander with a courtesy copy to the group commander.

Suspense extensions will be granted by 375 SFS/CC on a case-by-case basis. Notices of Late Suspense can be completed electronically as long as S5R maintains a copy of the read receipt.

9.2.2.6. If the 375 SFS/CC determines the citation was in error, the process will end there. However, if the 375 SFS/CC determines the citation should stand, all information will be forwarded to the installation 375 MSG/CC for final disposition. Once the rebuttal authority has made a decision, S5R will notify the violator of the final outcome of their ticket rebuttal in writing.

9.2.2.7. Once finalized, record command action and enter it into AFJIS.

9.3. Moving Violations. The following actions will be taken on the accumulation of identified number of points:

9.3.1. Accumulation of 6 to 11 traffic points. An advisory email will be forwarded with read receipt to the individual through his/her unit first sergeant. The unit commander or civilian supervisor will counsel the individual on the penalties that could be imposed on them.

9.3.2. Accumulation of 12 or more traffic points. When 12 or more traffic points are accumulated within 12 months (1 continuous year), the person's driving privileges will be suspended for a period of 6 months.

9.3.3. Accumulation of 18 or more traffic points. When 18 or more traffic points are accumulated within 24 months (2 continuous years), the person's driving privileges will be suspended for a period of 1 year.

9.4. Non-moving Violations. The provisions listed below apply to citations issued by security forces via USDC Violation Notice, DD Form 1408, and DD Form 1408 issued by parking wardens. Non-moving citations issued outside the jurisdiction of Scott AFB are not considered under the accumulative provision listed below. When the operator is unidentified, the registered owner will be cited for the non-moving violation, unless a written statement is provided within 5 duty days from the date of the citation by the registered owner that another individual was operating the motor vehicle and concurrence of that individual is reflected on the written statement. In this case, the 375 SFS/CC will evaluate the citation and cite the responsible individual. For GOVs, the responsible identified operator will be cited under this paragraph. The following mandatory administrative actions, in addition to any appropriate disciplinary action by the respective unit commander, will be taken when persons subject to this instruction have accumulated the number of non-moving violations indicated during a 12-month period.

9.4.1. Third non-moving violation: Suspended from driving on base for 30 days.

9.4.2. Fourth non-moving violation: Suspended from driving on base for 6 months.

9.4.3. Fifth non-moving violation: Suspended from driving on base indefinitely.

9.4.4. First handicap violation: Warning letter sent to the individual concerned.

9.4.5. Second handicap violation: 60-day suspension of on-base driving privileges.

9.4.6. Third handicap violation: 1-year suspension of on-base driving privileges.

9.4.7. It is the responsibility of the vehicle operator to ensure all occupants are utilizing seat belts and/or child restraint devices. Failure to use seat belts and/or child restraints while the vehicle is in motion will result in the following actions against the vehicle operator:

9.4.7.1. First offense: Mandatory counseling by assigned unit.

9.4.7.2. Second offense: 30-day suspension of on-base driving privileges.

9.4.7.3. Third offense: 6-month suspension of on-base driving privileges.

9.4.7.4. Fourth offense: 1-year revocation of on-base driving privileges.

9.4.7.5. The 375 SFS has developed a Parking Warden program. Parking Wardens must be delegated by unit commanders, in writing, for participation in the program. 375 SFS/S3P maintain the letter on file. The letter should specify a minimum of one primary and alternate in the grade of E-5 or above. Parking Wardens are the unit commander's representative to issue citations for parking violations in areas under the control of their commander. Wardens will issue parking tickets via DD Form 1408.

9.4.7.6. Parking wardens will be trained by security forces personnel on the correct way to complete DD Forms 1408. The main difference between a DD Form 1408 issued by a security forces member and one issued by a parking warden is the special instructions on the back of the pink copy that directs the violator to contact the parking warden who issued the ticket instead of 375 SFS/S5R. It is important that parking wardens include how or where they can be reached by the violators. When contacted by the violator, the parking warden will fill in any missing data in sections 1-10. Tickets that are incomplete, over 30-days old or written by personnel not designated as parking wardens will not be processed and will be returned to the unit with no action taken by security forces.

9.4.8. Vehicle operators are prohibited from using cellular phones while operating a motor vehicle without the use of a hands-free device. This stipulation includes text messaging which is defined as any action involving reading from or entering data into any handheld or other electronic device, including for the purpose of SMS texting, e-mailing, instant messaging, obtaining navigational information, or engaging in any other form of electronic data retrieval or electronic data communication. Failure to comply with this rule while driving will result in the following actions against the vehicle operator:

9.4.8.1. First offense: Mandatory counseling by assigned unit.

9.4.8.2. Second offense: 30-day suspension of on-base driving privileges.

9.4.8.3. Third offense: 6-month suspension of on-base driving privileges.

9.4.8.4. Fourth offense: 1-year revocation of on-base driving privileges.

Chapter 10

PARKING

10.1. Standards. No person will park within 25 feet upon the approach of any yield sign, stop sign, or traffic-control signal at the side of a roadway. (IVC 11-1303.2d)

10.2. Unimproved surfaces. No person will park or stop any vehicle, except for those vehicles designed for off-road operation on any surface not improved for vehicle operation. The BCE may grant exceptions for construction and delivery vehicles.

10.3. Parking in alleys. No person will park a vehicle in an alley or under conditions to leave available less than 10 feet of the width of the roadway for the free movement of vehicular traffic, and no person shall stop, stand, or park a vehicle within an alley in a position to block the driveway entrance to any abutting property.

10.4. Exceptions for emergencies. No person will stand, stop or park a vehicle along any roadway or unimproved surface during emergency breakdown or otherwise abandon a vehicle without prompt notification to security forces, attempting to make location safe, engaging flares or emergency flashers, and instituting prompt service or removal of vehicle. In no case, shall a vehicle described herein, be parked under this exclusion in excess of 2 hours.

10.5. Parking for specific purposes is prohibited. No person will park a vehicle on a roadway or parking lot for the following purposes:

10.5.1. Displaying a vehicle for sale. Vehicles advertised for sale may be parked in the parking area designated for sale of vehicles, located at the southwest corner of the intersection of South Drive and Inner Drive, provided the owner has registered with the 375th Force Support Squadron Outdoor Recreation on a Scott AFB Form 12, *POV Resale Lot Permit*, and complied with all the registration requirements. Vehicles that are not properly registered and fail to comply with established procedures are subject to being towed at the owner's expense, and the owner will be issued a citation. **Exception:** Vehicles "For Sale" may used as a daily mode of transportation to and from a workplace, but will not remain unattended for more than 24 hours. At no time will trailers for sale or with contents for sale be left unattended on Scott AFB unless properly registered with outdoor recreation and properly located on the POV resale lot.

10.6. Washing, greasing, or repairing a vehicle, except repairs necessitated by an emergency.

10.6.1. Major repairs while on any roadway, parking lot or other locations not designated as a vehicle maintenance area. Major repair is identified as maintenance, other than tire change, minor mechanical adjustments to engine, safety equipment adjustment, or replacement, minor repair to exterior and interior of body, and sanitation.

10.7. Parking prohibited on narrow streets. No person will park a vehicle on any street when the width of the roadway does not exceed 20 feet or on one side of a street, when the width of the roadway does not exceed 30 feet.

10.8. Parking Rules for Recreational Vehicles (RV) (e.g., motor homes, campers, all terrain vehicles (ATV), boats) and Trailers (e.g., open or closed utility trailers, horse carriers, car carriers).

10.8.1. Permanently assigned personnel. Permanent RV parking is located on the east side of the base between Van Buren and Harrison Streets. This service requires a fee. Contact Outdoor Recreation, at (618) 256-2067 or DSN 576-2067, for more information.

10.8.2. Personnel may park their RV at the FAM camp after coordinating with outdoor recreation. This service requires a fee.

10.8.3. **Exceptions:** Parking in other locations (e.g., lodging, temporary lodging facility, or housing area) is allowed for no more than 24 hours for the purpose of servicing, loading or unloading, prior to or after use.

10.8.4. Parking Rules for RVs and/or Unattended Trailers in Parking Lots or Roadways: Unattended RVs and/or trailers will not be parked in a parking lot or roadway for more than 24 hours for the purpose of servicing, loading, or unloading.

10.8.5. Parking adjacent to curb restrictions. No person will park or stop any vehicle on a roadway or adjacent to a curb, unless the area is marked or labeled as parking. Marked or labeled parking includes street stenciling or curb mounted parking signs.

10.8.6. All vehicles are prohibited from parking in hash marked areas of streets or parking lots unless approval is granted in writing by the appropriate facility manager or commander. **Note:** SFS personnel must be aware of this approval in order to prevent citations being authored in error.

10.8.7. Parking, stopping or standing on the left side of the roadway is prohibited. No person will park, stop, or position a vehicle on the left side of the roadway, so that the vehicle faces oncoming traffic. Exceptions are provided on one-way streets, if not otherwise restricted, and for commercial or military vehicles when the loading or unloading of cargo cannot otherwise be discharged.

10.8.8. Shiloh Housing parking. In Shiloh Housing, parking is permitted only on the side of the street with a sidewalk.

10.8.9. Stopping for loading or unloading only.

10.8.10. Authority to designate curb-loading zones. The base traffic engineer is hereby authorized to determine the location of passenger and freight curb-loading zones, will place the appropriate signs or markings indicating the same, and starting hours when the provisions of this section are applicable. Included are all means of common, commercial, or military vehicle carriers.

10.8.11. Parking rules for tractor-trailers. Applies to those vehicles without on-base deliveries, but operated by personnel with base-access credentials (retirees, dependents, reservists, etc.). Tractor-trailers are not allowed to remain on base. Semis (tractor-trailers without trailers) can park only on base at the overflow area south of the Shoppette and east of the Library Auditorium.

10.9. Long-term parking rules.

10.9.1. Long term parking is available for active duty personnel who are assigned to Scott AFB. Retirees and reservists, not on active duty, may be permitted to use long-term parking on a case-by-case, space-available basis.

10.9.2. Long-term parking is primarily for extended leave and TDY, not to exceed 190 days. Exceptions may be made on a case-by-case basis. The following rule applies to dormitory residents who choose to leave their vehicles at the dormitory while deployed:

10.9.2.1. A locally generated laminated card will be issued by the member's unit deployment manager prior to departure. The laminated card will be placed on the dash of the deployed member's vehicle. The card will not exceed 4"x5" in size and must be displayed where it can be viewed by security forces personnel. The laminated card will be blue in color with the unit of assignment's logo or designation.

10.9.2.2. Laminated cards will not contain member's name or length of deployment or have any additional information that would otherwise identify to a casual viewer how long the vehicle owner will be out of the area.

10.9.2.3. Laminated cards will be returned to the unit deployment manger upon return.

10.9.3. All users of long-term parking must register their vehicles with the Dixon Visitor Center (DVC), Mon-Fri, 0600-2230. (**Exception:** AMC Inspector General Personnel are excluded from this provision.) A copy of the leave form, TDY orders, proof of ownership or power of attorney, must accompany the owner upon registration. Passes must be returned to DVC upon termination of the parking TDY.

10.9.4. All vehicles must display current state or base registration, be properly insured, and in running condition. Violators will be towed at the owner's expense.

10.9.5. Location of long-term parking is on the Hangar Road across from Fire Station 1 parking lot.

10.10. Parking at the Dixon Visitor Center (DVC).

10.10.1. The DVC parking lot is only intended to be used by those personnel who have official business to conduct at the DVC.

10.10.2. If an individual is not authorized to bring a vehicle on the installation for any reason they will not be permitted to leave their vehicle in the DVC parking lot.

10.10.3. Any vehicle which is left in the DVC parking lot while the occupants are not conducting official business inside the DVC (i.e., the vehicle was not allowed on the installation and the occupants were picked up at the DVC) is subject to towing at the owner's expense.

10.11. Authority to designate.

10.11.1. The 375 AMW/CC has the authority to designate specific locations as reserved for respective personnel, units, or categories, permanently or for specific time periods.

10.11.2. Requests for Designation. When a determination has been made by a person or unit that a need exists for reserved parking, the person or unit shall prepare written justification, to include: why reserved parking is needed, a sketch of the area showing requested spaces and

all previously authorized reserved parking spaces, a summary of the justification for the current authorizations, and a certificate of compliance that the request is IAW the criteria contained in this instruction for reserved parking. If other units or organizations use the parking lot or area where reserved parking is requested, the justification must include written coordination with all users of the parking lot or area. Forward the request to the 375 SFS/CC, 375 CES/CC, 375 MSG/CC and 375 AMW/CC.

10.11.3. Designation and restriction to park. When the 375 MSG/CC has designated specific locations as reserved and official signs or the base traffic engineer has placed markings, no person will stand, stop, park, or block entrance to the location with a vehicle, unless specifically authorized by the individual or unit for which the reserved parking is designated. **Exception:** Emergency vehicles on emergency response.

10.11.4. Requests for marking and maintenance. When approved by the 375 MSG/CC, the person or unit for whom the reserved parking is approved will initiate appropriate requests to the base traffic engineer for marking the reserved locations, and they will request all ongoing maintenance to ensure that the specific locations are adequately maintained to provide warning of restriction to motorists.

10.11.5. Priorities and description of reserved parking by type:

10.11.5.1. Priority #1, GOVs:

10.11.5.1.1. Vehicles assigned as auxiliary or sub pools, as defined in AFI 24-301, *Ground Transportation*.

10.11.5.1.2. Vehicles authorized by directives and assigned to specific key individuals. Reserved parking is restricted to the individual's prime duty location, with the exception of vehicles assigned to the AMC/CC, AMC/CD, United States Transportation Command (USTRANSCOM)/CC, USTRANSCOM/CD, general officers, 375 AMW/CC, and the 375 MSG/CC. The 375 MSG/CC may determine and designate supplemental requirements or locations.

10.11.5.2. Priority #2, General support mission vehicles. These are GOVs used for short-term visits, courier, cargo delivery, etc. Reserved parking locations in this category will be identified on an individual-request basis, with requests generated by the unit possessing the vehicle. Whenever 375 AMW/PA photographers must use their POV in performance of official photographic functions on Scott AFB and when a sign is displayed in the vehicle identifying them as "USAF Photographer on Official Government Business", they are authorized to park their POVs in areas reserved for "Official Government Vehicle."

10.11.5.3. Priority #3, POVs whose operators are disabled or handicapped. Permanent handicap/disability personnel must acquire a valid state issued handicapped decal, license plate, or rearview mirror tag.

10.11.5.3.1. Temporary disability:

10.11.5.3.1.1. Persons requesting handicap-parking privileges due to a temporary disability, e.g. broken leg, sprained ankle, etc., must be approved by the 375th Medical Group (MDG) Commander or designated representative.

10.11.5.4. Priority #4. Customer service and visitor parking:

10.11.5.4.1. At the request of a unit, the 375 MSG/CC will review customer service and visitor parking areas for approval.

10.11.5.4.2. All customer service and visitor parking will be "time limited."

10.11.5.5. Priority #5. Other POVs:

10.11.5.5.1. Persons occupying key positions within the headquarters and 375 AMW on Scott AFB. Groups and below are not authorized, unless approved by the base traffic engineer.

10.11.5.5.2. General Officers.

10.11.6. Non-duty hour policy. Reserved parking will be effective 24 hours per day, 7 days a week, except in common-use areas (commissary, base exchange, or handicapped parking, etc.), applicable during normal operating hours of the facility involved.

10.11.7. Enforcement of Reserved Parking. All reserved parking assigned to specific units will be enforced under the unit's Parking Warden Program. It is the responsibility of each unit to maintain a constant enforcement program as a continuance of their written justification for reserved parking. Non-enforcement of reserved parking by a specific unit shall be cause for reevaluation by the 375 MSG/CC of the unit's reserved parking requirements. Unit commanders will designate, in writing, personnel assigned parking warden duties and sign a Scott AFB Form 25, *Signature Card*, authorizing each warden to sign DD Form 1408. This form will be forwarded to the 375 SFS, Noncommissioned Officer in Charge of Police Services for approval. The Scott AFB Form 25 will be kept on file for verification purposes. Unit-designated parking wardens are only authorized to issue DD Forms 1408 for illegal parking violations in their area of responsibility. All other violations will be handled through the ECC.

10.11.8. Special reserved parking. When determined by the base traffic engineer and approved by 375 MSG/CC that special reserved parking will be set aside temporarily for special functions or permanently for specific vehicles, and the specific area is appropriately signed or marked, then restriction to parking is as reflected in **paragraph 4.23.5** of this instruction.

10.11.9. Master parking plan. When permanent reserved parking is established, the base traffic engineer shall maintain a record of all approvals, include the information on a master plan, and provide a copy of the master plan to the 375 SFS/CC.

10.11.9.1. Specific designated areas where decals are required. Commanders may authorize the use of vehicle identification such as decals or vehicle parking permits to indicate authorization to park in certain areas. Signage may be placed identifying reserved parking for permit holders when applicable. Command structure areas are designated as reserved for vehicles bearing appropriate decal or placard issued and controlled by units having designated responsibility. Parking shall be restricted as prescribed by posted signs and will be on a first-come, first-served basis by those authorized appropriate decals or parking permits. Exceptions to the first-come, first-served basis are specifically approved and posted individual spaces under unit reserved parking.

10.12. Management of unit reserved parking.

10.12.1. The total number of unit reserved parking spaces includes all GOV, loading zones, designated key personnel, disabled, handicapped, carpools, and spaces required for customer and visitor servicing.

10.12.2. Each unit will prepare initial requests for their total reserved vehicle parking requirements in one package. Each category will be listed independently and category totals added together for total required spaces.

10.12.3. Additional requests for reserved parking will be processed when practical or to meet mission requirements.

10.12.4. The unit will maintain records of requests, approvals, and assignment of spaces.

10.12.5. Parking facilities refer to exterior parking spaces, parking lots, and passenger loading zones.

10.12.6. When parking areas are provided, they will have handicapped parking spaces located as close as practical to the shortest accessible path of travel to each building, adjacent street, or sidewalk served by that parking area. Any exception will be furnished to the base traffic engineer and ultimate approval recommended to the 375 MSG/CC.

10.12.7. Parking spaces specifically reserved for people who use wheelchairs or walking aids shall be at least 130 inches wide. Where two adjacent spaces are planned and the vehicle going in forward or reverse can gain entry, the width of both spaces, plus access aisle, will be a minimum of 246 inches, with access aisle located between the two spaces. If entry can be gained only by going in forward, each space reserved for a disabled driver shall have an access aisle. The access will be at least four feet by six inches wide and preferably level, but may have a slope for drainage. The surface will be firm and spaces will be located at the end of parking lots where possible.

10.12.8. The number of parking spaces planned for disabled drivers on Scott AFB will be a minimum of two percent for a lot of 1-400 spaces or two spaces, whichever is greater. Lots consisting of 401 spaces and above, the number of reserved spaces shall be a minimum of eight spaces, plus one percent of the total spaces provided above 401. Facility managers will submit requests for handicapped parking IAW this instruction.

10.12.9. Curb ramps required around the parking area will be provided by the BCE to the accessible route of travel and be a minimum width of three feet measured across the useable surface of the ramp. The ramps must be designed to direct people into the crossing.

10.13. Documentation of Parking Violations. The DD Form 1408 and USDC Violation Notice will be used on Scott AFB to cite violators.

Chapter 11

IMPOUNDING PRIVATELY OWNED VEHICLES

11.1. Abandoned Vehicles. A POV is deemed abandoned, if left unattended for a period of 5 days. **Note:** If a vehicle is in the long-term parking lot with the appropriate security forces paperwork displayed in the windshield it is not considered abandoned unless it is 10 or more duty days after the owner's expected return and he/she has not made contact with security forces to request an extension.

11.1.1. Once the vehicle has been identified as abandoned, DD Form 1408 will be issued. The pink copy will be affixed to the vehicle. If after 72 hours, the vehicle has not moved or the owner/operator has not contacted a law enforcement official, a DD Form 2504, *Abandoned Vehicle Notice*, will be placed in the protective plastic, along with DD Form 1408. An additional 72 hours will be given to the owner/operator to remove the vehicle or correct the violation. The instructions listed on DD Form 2504 must include contacting SF Investigations who is the focal point for abandoned vehicles. The original and second copy of the DD Form 2504, the yellow and white copy of the DD Form 1408, along with a Law Enforcement Agencies Data System printout, will be given to Investigations for further processing.

11.1.2. Removal. Investigations will accomplish a DD Form 2505, *Abandoned Vehicle Removal Authorization*, and a DD Form 2506, *Vehicle Impoundment Report*. A final attempt to contact the owner will be made via certified mail. If the certified mail is returned, the on-call tow company will be contacted and arrangements for the tow will be made.

11.1.3. If the owner is identified after his/her vehicle is towed, that owner will be responsible for the necessary expenditures to the tow company in order to retrieve his/her vehicle.

11.1.4. If the current location of a POV hinders safety, mission requirements, or tow-away zone, and must be relocated without delay, make all feasible attempts to locate the owner/operator of the vehicle. If contact cannot be made, the 375 LRS or a commercial towing company will be contacted to tow the vehicle to a specified location. All costs for the towing of the vehicle will be incurred by the owner of the vehicle.

Chapter 12

OTHER VEHICLES AND REGULATIONS ON SCOTT AFB

12.1. Authorized emergency vehicles.

12.1.1. The driver of an authorized emergency vehicle responding to, or when in pursuit of an actual or suspected violator of the law, may park, stand or exceed posted speed limits (in a manner that does not jeopardize safety), irrespective of the provisions of this instruction.

12.1.2. Traffic Law Obedience:

12.1.2.1. Drivers of authorized emergency vehicles, while responding to an emergency may:

12.1.2.2. NOT USED

12.1.2.2.1. Park or stand irrespective to the provisions of this instruction, providing the vehicle is parked or standing as a result of emergency response and it does not create a safety hazard.

12.1.2.2.2. Proceed past a red signal or stop sign, but only after assuring the intersection is free of traffic and there is no danger to life or property.

12.1.2.2.3. **Note:** The exemptions granted to authorized emergency vehicles shall apply only when the operator of the vehicle, while in motion, displays at least one red or blue-lighted lamp, multicolor or appropriate light bars. The provisions of this section shall not relieve the operator of the emergency vehicle from the duty to drive with regard for the safety of all or shall it protect the operator from the consequences of his/her reckless disregard for the safety of others. Emergency vehicles will not disregard any traffic control device when responding to exercise situations.

12.1.3. The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from duty to park, stand or operate vehicles at a speed considered safe for existing road conditions, with due regard for the safety of all persons. This provision does not protect the driver from the consequences of reckless disregard for the safety of others.

12.2. Off-Road Vehicle (ORV). Any motorized vehicle designated for or capable of cross-country travel on or immediately over land, water, snow, ice, marsh, swampland or other natural terrain is an ORV. This includes, but is not limited to, automobiles, trucks, four-wheel drive or low-pressure tire vehicles, tracked vehicles, motorcycles and related two-wheeled vehicles, snowmobiles, amphibious machines, including airboats, ground-effect or air-cushion vehicles, recreational campers, and any other means of transportation deriving motive power from any source other than muscle.

12.2.1. This includes vehicles exempt from installation registration according to this instruction.

12.2.2. The ORV list excludes the following:

12.2.2.1. Any non-amphibious registered motorboat.

12.2.2.2. Any civil engineer vehicle performing authorized work or training-related tasks.

12.2.2.3. Any military fire, ambulance, or law enforcement vehicle when used for emergency purposes or other official business.

12.2.2.4. Self-propelled lawnmowers, snow blowers, garden, or lawn tractors, and golf carts, while being used for their designed purpose.

12.2.2.5. Any vehicle whose use is authorized by the Secretary of Defense, Secretary of the Air Force or other properly designated representatives, including the 375 MSG/CC for official use under a permit, lease, license or contract.

12.2.3. Prohibited ORV use. All land and water areas under Air Force control within the confines of Scott AFB are closed to off-road travel by ORVs. This includes all roadways and paved areas unless specifically approved by the MSG/CC.

12.2.4. The 375 MSG/CC has determined no areas may be used for Off-Road Vehicle (ORV) operation except by authorized personal for official business. The ORVs designed for both on- and off-road use and intended for on-road use on Scott AFB must be registered as street vehicles according to this instruction to facilitate on-road use within the confines of Scott AFB, and must meet all safety requirements for on-road use.

12.3. Low Speed Vehicles (LSV). LSV are defined as motorized vehicles whose top speed is not greater than 25 mph.

12.3.1. LSV designed for and intended for use on Scott AFB roadways and paved surfaces must be equipped with the following:

12.3.1.1. Headlamps.

12.3.1.2. Front and rear turn signal lamps.

12.3.1.3. Tail lamps.

12.3.1.4. Stop lamps.

12.3.1.5. Exterior mirror mounted on the driver's side of the vehicle and either an exterior mirror mounted on the passenger's side of the vehicle or an interior mirror.

12.3.1.6. Parking brake.

12.3.1.7. A windshield of AS-1 or AS-5 composition, that conforms to the American National Standards Institute (ANSI) "Safety Code for Safety Glazing Materials for Glazing Motor Vehicles Operating on Land Highways."

12.3.1.8. Type 1 or Type 2 seat belt assembly installed at each designated seating position.

12.3.1.9. Roll bar.

12.4. Bicycle.

12.4.1. All bicycles will be equipped when operated, as required by IVC, Section 12-107 (IVC 11-1507).

12.4.1.1. License not required. A license is not required for the operation of bicycles on Scott AFB; however, it is encouraged that owners record serial numbers for identification of bicycles. It is also encouraged that owner identification be attached to or otherwise engraved on bicycles to facilitate identification and reduce potential loss.

12.4.1.2. Parking. Bicycles should be parked against the curb or upon the sidewalk in a rack to support the bicycle, or against a building in such manner as to afford the least obstruction to pedestrian traffic.

12.5. Play, parade, and ceremony streets. Whenever authorized signs are erected indicating a street or part thereof as a play, parade or ceremony street, no person shall drive a vehicle on that street or portion thereof, except drivers of vehicles having business and specifically authorized to enter or whose residence are within a closed area and have been specifically authorized to enter. The driver will then exercise caution in driving on the designated street or portion thereof.

12.5.1. Permits are required for parades, processions, or gatherings. No parade, procession or gathering containing 20 or more persons or five or more vehicles, except the Armed Forces of the United States, the military forces of a state, and the forces of civilian police and fire departments shall occupy, march, or proceed along any street, except when following eSSS signed permit approved by the 375 CES, 375 SFS/S3P, 375 AMW/PA, 375 AMW/SE and 375 AMW/CC (see **Attachment 4**).

12.6. Driving through a procession. No driver of a vehicle shall drive between the vehicles comprising an authorized procession while they are in motion and when vehicles are conspicuously designated as required in this instruction. This provision shall not apply at intersections where traffic is controlled by traffic-control signals or security forces personnel. A procession of vehicles shall be identified, as such, by the display of a pennant on each vehicle, vehicle lights turned on or procession shall be led by a vehicle bearing a warning beacon, with all following vehicles having lights turned on.

12.7. Bus Stops.

12.7.1. **Bus operation.** The operator of a bus shall not stop the bus at any place for the purpose of taking on or discharging passengers other than at a bus stop so designated as provided herein, except in the case of an emergency, while on special tour, on a special route or while operating on the flight line area.

12.7.2. Restrictions to stop, stand, or park at bus stops. No person shall stop, stand or park a vehicle, except an authorized carrier at a bus stop, so designated, as provided between the right curb and any stop, except for the operator of a passenger vehicle that requires to temporarily stop for the purpose of and while actually engaged in the discharge or the pickup of passengers.

12.8. Towing of Vehicles.

12.8.1. Privately owned motor vehicles may be towed on Scott AFB subject to the following conditions (IVC 15-110):

12.8.1.1. The tow bar or other connection must be of sufficient strength to pull all the weight of the towed vehicle.

12.8.1.2. The tow bar or other connection will not exceed 15 feet from one vehicle to another.

12.8.1.3. “Vehicle in Tow” sign must be posted on the rear of the vehicle being towed.

12.8.1.4. If vehicles are being towed during the hours of darkness or low-visibility periods, the towed vehicle must be appropriately lighted.

CHRISTOPHER M. ROBINSON, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DoDD 5525.4, *Enforcement of State Traffic Laws on DoD Installations*, 2 November 1981

AFI 24-301, *Ground Transportation*, 22 October 2019

AFI 31-115, *Law and Order Operations*, 18 August 2020

AFI 91-207, *The US Air Force Traffic Safety Program*, 26 July 2019

SCOTTAFBI 13-213, *Airfield Driving Instruction*, 22 July 2020

705 ILCS 135/15-60 Schedule 12, Circuit Courts Act, 1 July 2019

705 ILCS 135/15-65 Schedule 13, Circuit Courts Act, 1 July 2019

Adopted Forms

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2505, *Abandoned Vehicle Removal Authorization*

DD Form 2506, *Vehicle Impoundment Report*

United States District Court Violation Notice

AF Form 1315, *Accident Report*

AF Form 3545A, *Incident Report*

Scott AFB Form 12, *POV Resale Lot Permit*0

Scott AFB Form 25, *Signature Card*

Abbreviations and Acronyms

AFJIS—Air Force Justice Information System

AMC—Air Mobility Command

AMW—Air Mobility Wing

ATV—All Terrain Vehicles

BAC—Blood Alcohol Content

BCE—Base Civil Engineer

BrAC—Breath Alcohol Content

CD—Deputy Commander

CES—Civil Engineer Squadron

CC—Commander

CVB—Central Violations Bureau

DBIDS—Defense Biometric Identification System

DUI—Driving Under the Influence

DVC—Dickson Visitor Center

ECC—Emergency Communications Center

GOV—Government Owned Vehicle

GPS—Global Positioning System

ILCS—Illinois Compiled Statutes

IVC—Illinois Vehicle Code

JA—Judge Advocate

LRS—Logistics Readiness Squadron

MDG—Medical Group

MSG—Mission Support Group

OPR—Office of Primary Responsibility

PA—Public Affairs

POV—Privately Owned Vehicle

RV—Recreational Vehicle

SFS—Security Forces Squadron

UCMJ—Uniform Code of Military Justice

USC—United States Code

USDC—United States District Court

USTRANSCOM—United States Transportation Command

DVC—Vehicle Control Center

Attachment 2

SUSPENSION/REVOCATION OF DRIVING PRIVILEGES

Table A2.1. Suspension/Revocation of Driving Privileges Schedule.

Assessment: 1. Two-year revocation is mandatory on determination of facts by the installation commander.
Violation: Driving while driver's license or installation driving privileges are under suspension or revocation.
Assessment: 2. One-year revocation is mandatory on determination of facts by the installation commander.
Violation: Refusal to submit to or failure to complete chemical tests (implied consent).
Assessment: 3. One-year revocation is mandatory on conviction.
Violations:
1. Manslaughter (or negligent homicide by vehicle) resulting from the operation of a motor vehicle.
2. Driving, or in physical control of, a motor vehicle while under the influence of intoxicating liquor.
3. Driving a motor vehicle while under the influence of any narcotic or while under the influence of any other drug (including alcohol) to the degree rendered incapable of safe vehicle operation.
4. Use of a motor vehicle in the commission of a felony.
5. Fleeing the scene of an accident involving death or personal injury (hit and run).
6. Perjury or making a false statement or affidavit under oath to responsible officials relating to the ownership or operation of motor vehicles.
7. Unauthorized use of a motor vehicle belonging to another individual, when the act does not amount to a felony.
Assessment: 4. Suspension for a period of 6 months or less or revocation for a period not to exceed 1 year is discretionary.
Violations:
1. Mental or physical impairment (not including alcohol or other drug use) to the degree rendered incompetent to drive.
2. Commission of an offense in another state, which, if committed on the installation, would establish grounds for suspension or revocation.
3. Permitting an unlawful or fraudulent use of an official driver's license.
4. Conviction of fleeing or attempting to elude a police officer.
5. Conviction of racing on the highway.
6. Excessive parking and other non-moving violations as covered under paragraph 4.20 of this instruction.
Notes:
1. When imposing a suspension or revocation because of an off-installation offense, the effective date is the same as the date of civil conviction or the suspension or revocation date of state or host nation driving privileges. This effective date can be retroactive.
2. Points for off base violations resulting in suspension or revocation of driving privileges by the respective state will not be applied to individuals. Revocation or suspension of on

base driving privileges is mandatory when involving implied consent violation, conviction by a civilian court, military court-martial, and non-judicial punishment under Article 15 of the UCMJ or a separate hearing as addressed in this instruction. If revocation for implied consent is combined with another separate revocation or suspension of driving privileges, revocations or suspensions may run consecutively (total of 24 months) or concurrently (total of 12 months). Apply the installation commander's policy systematically and not on a case-by-case basis.

Attachment 3

POINT ASSESSMENT FOR ON BASE VIOLATIONS

Table A3.1. Point Assessment for On Base Violations.

Violation/Offense	Points
Allowing a person to operate a vehicle while intoxicated	6
Allowing unlicensed person to operate vehicle	0
Bus Lane/Exclusive Lane violation	0
Careless Driving	3
DWI - BAC .08% or more or under the influence of illegal drugs	6
Driving while impaired	6
Driving while impaired - BAC .05% and greater but less than .08%	6
Driving while impaired - BAC less than .05%	6
Driving while impaired - Refusal to submit to a chemical test	6
Driving without a valid operator permit	0
Driving without operator permit in possession	0
Failure to Display License Plate	3
Failure to Illuminate or Dim Headlights	3
Failure to Secure Vehicle	3
Failure to abide by Base and/or vehicle registration requirements	2
Failure to exercise due care to avoid a pedestrian	4
Failure to obey traffic signals, signs, devices or instructions of an enforcement officer	4
Failure to properly restrain a child	4
Failure to report an accident	0
Failure to signal	3
Failure to stop for school bus or school-crossing signals	4
Failure to use restraints - operator or occupant	4
Failure to wear approved helmet	3
Failure to yield (no official sign involved)	4
Failure to yield right of way to emergency vehicle	4
Fleeing or attempting to elude a police officer	6
Fleeing the scene (Injury/Death)	0
Fleeing the scene (hit and run) - Property Damage Only	6
Following too close	4
Homicide by vehicle	0
Illegal Parking	0
Illegal Parking - Parking in Handicap Space/Fire Lane	3
Illegal Tint	3
Improper overtaking	3
Improper passing	4
Improper turning movements (no official sign involved)	3
Inattention to Driving/Loud Music	3
Invalid State Registration	0

No Insurance	0
No State Inspection Sticker	3
No vehicle registration in possession	2
Offroading/Grandstanding	4
Open containers in vehicle	6
Operating an unsafe vehicle	2
Operating vehicle while under suspension or revocation	0
Other Offenses (indicate in Additional Information Section)	0
Other moving violations (indicate in Additional Information Section)	3
Providing a false police report	0
Reckless Driving	6
Speed Contests	6
Speed too Slow, causing safety hazard	2
Speed too fast for conditions	2
Speeding - more than 10 MPH but not more than 15 MPH over limit	4
Speeding - more than 15 MPH but not more than 20 MPH over limit	5
Speeding - more than 20 MPH over limit	6
Speeding - not more than 10 MPH over limit	3
Student/Limited driver license violation	3
Unauthorized use of vehicle	3
Unlawful and/or fraudulent use of an official driver’s license	3
Use/Operation of a Radar Detector	3
Using Cell Phone while Driving	3
Wearing of headphones/earphones while driving	3

Attachment 4

ELECTRONIC STAFF SUMMARY SHEET (E-SSS) FOR PARADE REQUEST

Figure A4.1. e-SSS for Parade Requests.

COORDINATION:

Office	Action	Last Name, Rank, Date	Signature
375 CES	Coord		
375 SFS	Coord		
375 PA	Coord		
375 AMW/SE	Coord		
375 AMW/CC	Approve		

AO: Rank, First Last/ Unit / Phone Number

DATE: DDMMMYY

SUSPENSE: DDMMMYY

1. PURPOSE:

2. BACKGROUND:

3. DISCUSSION:

Attachment 5

HOW TO CONSENT TO PROCEED BEFORE A MAGISTRATE JUDGE

A5.1. Complete and file the Notice and Consent to Proceed Before a Magistrate Judge form found on https://wwww.ilsd.uscourts.gov/Forms/Consentomag.pdf. If all parties in the case consent, the presiding district judge will issue an order referring the case to a magistrate judge. It's as simple, and efficient, as that.

A5.2. In accordance with Title 28 USC § 636(c), a United States magistrate judge of this court is available to conduct all proceedings in civil actions (including a jury or nonjury trial) and to order the entry of a final judgment.

A5.3. The judgment may then be appealed directly to the United States Court of Appeals for the Seventh Circuit, like any judgment issued by a district judge.

A5.4. A magistrate judge may exercise this authority *only if all parties voluntarily consent*. You may consent to have your case referred to a magistrate judge, or you may withhold your consent without substantive adverse consequences. See below example.

Figure A5.1. Notice Regarding Magistrate Judge Jurisdiction Form.

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF ILLINOIS

_____
Plaintiff

v.

_____
Defendant(s)

Case Number: _____

Notice Regarding Magistrate Judge Jurisdiction and Consent/Non-Consent Form

Each party to the above-captioned civil matter shall select one of the following two options indicating whether the party will consent or will not consent to having a Magistrate Judge conduct any and all proceedings in this case, including trial and entry of final judgment, in accordance with the provisions of Title 28 U.S.C. Section 636(c).

Check One:

☐ The party or parties listed below consent to having a Magistrate Judge conduct any and all proceedings in this case. (Note: Selecting this option does not affect your ability to challenge this court's subject matter or personal jurisdiction).

☐ The party or parties listed below do not consent to having a Magistrate Judge conduct any and all proceedings in this case.

Name of Party or Parties (list):

Printed Name of Party	*Signature of Party or Attorney*	*Date*

Submitted By: _____ Dated: _____

Note: Corporations may execute this election only by counsel.